1/11/2022

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IN THE NATIONAL INDUSTRIAL COURT
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO: NICN/LA/378/2021

NATIONAL INDUSTRIAL COURT OF NIGERIA
RECEIVED
17 NOV 2022
LAGOS JUDICIAL DIVISION

BETWEEN:

AMAL ABDULRAHMAN **CLAIMANT**

NATIONAL INDUSTRIAL COURT
Date 17/11/22
Sign
LAGOS DIVISION
NIGERIA

AND

1. **IKEJA HOTEL PLC**] **DEFENDANTS**
2. **MARRIOTT INTERNATIONAL**]
3. **REX NIJHOF**]

MOTION ON NOTICE BROUGHT PURSUANT TO ORDER 17 RULE 1 (1) AND ORDER 38 RULE 6 (1) AND 7 (2) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA (CIVIL PROCEDURE) RULES 2017

TAKE NOTICE that this Honourable court shall be moved on the_____ day of_____, 2022, at the hour of 9 o'clock in the forenoon or so soon thereafter as Counsel may be heard on behalf of the Claimant/Applicant praying this Honourable Court for the following reliefs:

i) **AN ORDER** of this Honourable Court setting aside its Order of the 1st November 2022 striking out this cause for lack of diligent prosecution

ii) **AN ORDER** of this Honourable Court extending the time within which the Claimant herein may apply to re-list this suit against the Defendants.

iii) **AN ORDER** re-listing this cause and re-instating the Claimant's suit against the Defendants, same having been struck out by order of the court.

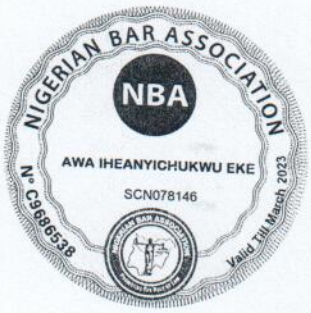
iv) **AND** for such further or other orders as this Honourable Court shall deem fit to make in the circumstances.

TAKE FURTHER NOTICE that the grounds for this application are thus:

1. The suit was stuck out for want of diligent prosecution not on the merits of the case;

2. This court has the power and discretion to grant the order sought on such terms as it deems fit;
3. The court was misled by representations made by the Defendants which were calculated to truncate proceedings in limine;
4. A failure to grant the application re-listing the cause and re-instating the Claimant's suit will occasion a miscarriage of justice.

DATED this 14th day of November, 2022



I. Awa

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FOR SERVICE ON:
The Defendants
C/o their Counsel
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Primera Africa Legal
1B Utomi Aire
Off Admiralty Way
Lekki Phase 1
Lagos

IN THE NATIONAL INDUSTRIAL COURT
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO:

BETWEEN:
AMAL ABDULRAHMAN **CLAIMANT**

AND

1. **IKEJA HOTEL PLC**] **DEFENDANTS**
2. **MARRIOTT INTERNATIONAL**]
3. **REX NIJHOF**]

AFFIDAVIT IN SUPPORT OF MOTION ON NOTICE

I, Chioma Ehiaguina, Nigerian Citizen of 7th Floor, Mulliner Towers, Ikoyi, Lagos State do hereby make oath and state as follows:

1. I am Legal Practitioner employed by Zane-Michael Partners 7th Floor, Mulliner Towers, Ikoyi, Lagos State and also engaged by the law firm of Awa U. Kalu (SAN) & Partners, Counsel to the Claimant by virtue of which I am conversant with the facts of this suit and the circumstances surrounding this application.

2. That I have the authority and consent of my employers and the Claimant in this matter to depose to the facts contained in this Affidavit.

3. That I was telephoned at 9am on Friday, November 11th, 2022 by Nnamdi U. Awa-Kalu, Counsel to the Claimant based at their offices at Plot 248 Norbert E. Offor Street, Kado, Abuja who informed me and I verily believe his information to be accurate and a true representation of the state of affairs that:

a. On the 2nd June, 2022, the instant suit was slated to come up for hearing before this court but his Lordship, Honourable Justice M.N. Esowe was unavoidably absent from court and the matter was not heard. Claimant's Counsel in the persons of Nnamdi U. Awa-Kalu and David E. Idang were present in court. They were informed by one Alabota Happy-Great, representing the Defendants, that, having been absent at the last hearing date on the 4th April, 2022, the matter was adjourned till the 1st and 2nd of November, 2022. David E. Idang went on to verify this information from the Registry of the Court and Claimant's Counsel applied for and obtained a copy of the Certified True Copy of the Record of Proceedings of the Court from the inception of this suit on the 21st September, 2022.

b. On Friday, 28th October, 2022, David E. Idang Esq, whose number is listed in the records of this Court and supplied by Counsel to the Claimants as a contact reference in respect of this suit, was contacted by the Registry of this Honourable Court via SMS with information confirming that the matter had been slated for hearing on the 2nd November, 2022. However, David Idang is no longer in the employ of the Claimant's Counsel and forwarded the details to Nnamdi U. Awa-Kalu via SMS.

c. Upon David Idang's resignation from the law firm of Claimant's Counsel on the 21st October, 2022, Claimant's Counsel was unfortunately left without their eyes and ears in the Lagos jurisdiction, with little time to make a replacement and to deal with the various issues, challenges and circumstances which arise in the course of litigation from day to day. It is for this reason that Claimant's Counsel engaged me to handle representation in Lagos through my law firm Zane-Michael Partners.

d. Thus, when Nnamdi Awa-Kalu received this information he made efforts to contact Alabota Happy-Great on the 31st October, 2022 to inform her that the matter had been fixed for the 2nd November, 2022, in return for the courtesy she showed when she informed him on the 2nd June, 2022 of the fact that the matter had been adjourned

to the 1st and 2nd November, 2022. She immediately asked to be shown a copy of the SMS since she had not received it herself from the Registry and Nnamdi Awa-Kalu forwarded it to her.

e. On the 1st November, 2022, Nnamdi Awa-Kalu received a mysterious call from a lawyer who explained that he was a practitioner employed by Counsel to the Defendants, to confirm that in fact the SMS confirming that the court would sit in hearing of the instant suit on 2nd November, 2022 had been received by Claimant's Counsel. Upon confirming this fact, the caller terminated the call.

f. To his confusion and utter consternation, Nnamdi Awa-Kalu arrived in court to find that the matter was not listed and was informed by the Court Registrar that the matter had been struck out the previous day at the instance of Counsel to the Defendants. No effort had been made to convey to the court the exchanges between themselves and Claimant's Counsel prior to that date. Instead, the Defendants' Counsel made allegations of the Claimant's failure to prosecute the matter diligently in order to induce the Court to make an order to strike out the suit.

g. It is this reason that has necessitated the filing of an application to re-list the suit in order that the Claimant's cause may not be defeated by the machinations of the Defendants' Counsel in this matter.

h. In truth, the Defendants only filed their defence in this suit on the 4th April, 2022, a full seven months after the suit was first institutes and two months after the matter first came up for hearing before this honourable Court. It would appear that any lack of diligence in attending to the requirements of litigation in this suit must be attributed to the Defendants and not the Claimant.

i. The Claimant's Counsel has been hampered by the fact of their location well outside the jurisdiction of this Honourable Court in

Abuja, and some strategic planning and case management has been necessary to allow for air travel to and from Lagos State.

j. The Claimant's Counsel had no reason to be absent from proceedings without just cause and makes this application to re-list in good faith.

4. That the grant of this application will not prejudice the Defendants in any way but would rather serve the interest of justice on the whole.

5. That I make this affidavit in good conscience, knowing same to be true and in accordance with the Oaths Act.

DEPONENT

Sworn to at the National Industrial
Court of Nigeria Registry

This 17th day of November, 2022

BEFORE ME

COMMISSIONER FOR OATHS

COMMISSIONER FOR OATHS
NATIONAL INDUSTRIAL COURT OF NIGERIA
OLUWAKEMI ABOLADE

IN THE NATIONAL INDUSTRIAL COURT
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO: NICN/LA/378/2021

BETWEEN:

AMAL ABDULRAHMAN **CLAIMANT**

AND

1. **IKEJA HOTEL PLC**] **DEFENDANTS**
2. **MARRIOTT INTERNATIONAL**]
3. **REX NIJHOF**]

WRITTEN ADDRESS IN SUPPORT OF APPLICATION TO RE-LIST THE CLAIMANT'S CAUSE

1.00 Introduction

1.10 The Claimant/Applicant (the "Applicant") has filed this application praying this Honourable Court for the following reliefs:

i) ***AN ORDER*** *of this Honourable Court setting aside its Order of the 1st November 2022 striking out this cause for lack of diligent prosecution*

ii) ***AN ORDER*** *of this Honourable Court extending the time within which the Claimant herein may apply to re-list this suit against the Defendants.*

iii) ***AN ORDER*** *re-listing this cause and re-instating the Claimant's suit against the Defendants, same having been struck out by order of the court.*

iv) ***AND*** *for such further or other orders as this Honourable Court shall deem fit to make in the circumstances.*

1.20 The Applicants further noted the following grounds for Application:

1 *The suit was struck out for want of diligent prosecution not on the merits of the case;*

2 *This court has the power and discretion to grant the order sought on such terms as it deems fit;*

3 *The court was misled by representations made by the Defendants which were calculated to truncate proceedings in limine;*

4 *A failure to grant the application re-listing the cause and re-instating the Claimant's suit will occasion a miscarriage of justice.*

1.30 This application is supported by a 5-paragraph affidavit deposed to by Chioma Ehiaguina. Particular reliance is placed on Paragraphs 3 of the said Affidavit by the Applicant as the statement of facts in this Written Address and this is reproduced below.

1.31 Statement of Facts

1.32 The facts relevant to this application are as represented below:

1.321 *On Friday, 28th October, 2022, David E. Idang Esq, whose number is listed in the records of this Court and supplied by Counsel to the Claimants as a contact reference in respect of this suit, was contacted by the Registry of this Honourable Court via SMS with information confirming that the matter had been slated for hearing on the 2nd November, 2022. However, David Idang is no longer in the employ of the Claimant's Counsel and forwarded the details to Nnamdi U. Awa-Kalu via SMS.*

1.322 *Upon David Idang's resignation from the law firm of Claimant's Counsel on the 21st October, 2022, Claimant's Counsel was unfortunately left without their eyes and ears in the Lagos jurisdiction, with little time to make a replacement and to deal with the various issues, challenges and circumstances which arise in the course of litigation from day to day. It is for this reason that Claimant's Counsel engaged me to handle representation in Lagos through my law firm Zane-Michael Partners.*

1.323 *Thus, when Nnamdi Awa-Kalu received this information he made efforts to contact Alabota Happy-Great on the 31st October, 2022 to inform her that the matter had been fixed for*

the 2nd November, 2022, in return for the courtesy she showed when she informed him on the 2nd June, 2022 of the fact that the matter had been adjourned to the 1st and 2nd November, 2022. She immediately asked to be shown a copy of the SMS since she had not received it herself from the Registry and Nnamdi Awa-Kalu forwarded it to her.

1.324 *On the 1st November, 2022, Nnamdi Awa-Kalu received a mysterious call from a lawyer who explained that he was a practitioner employed by Counsel to the Defendants, to confirm that in fact the SMS confirming that the court would sit in hearing of the instant suit on 2nd November, 2022 had been received by Claimant's Counsel. Upon confirming this fact, the caller terminated the call.*

1.325 *To his confusion and utter consternation, Nnamdi Awa-Kalu arrived in court to find that the matter was not listed and was informed by the Court Registrar that the matter had been struck out the previous day at the instance of Counsel to the Defendants. No effort had been made to convey to the court the exchanges between themselves and Claimant's Counsel prior to that date. Instead, the Defendants' Counsel made allegations of the Claimant's failure to prosecute the matter diligently in order to induce the Court to make an order to strike out the suit.*

1.326 *It is this reason that has necessitated the filing of an application to re-list the suit in order that the Claimant's cause may not be defeated by the machinations of the Defendants' Counsel in this matter.*

1.327 *In truth, the Defendants only filed their defence in this suit on the 4th April, 2022, a full seven months after the suit was first institutes and two months after the matter first came up for hearing before this honourable Court. It would appear that any lack of diligence in attending to the requirements of litigation in*

this suit must be attributed to the Defendants and not the Claimant.

1.328 *The Claimant's Counsel has been hampered by the fact of their location well outside the jurisdiction of this Honourable Court in Abuja, and some strategic planning and case management has been necessary to allow for air travel to and from Lagos State.*

1.329 *The Claimant's Counsel had no reason to be absent from proceedings without just cause and makes this application to re-list in good faith.*

1.40 This written address is the Applicant's argument in support of the motion.

1.50 In the circumstances, the Applicants have formulated two issues for determination:

i) *Whether this Honourable Court has the power and discretion to set aside its order striking out the Applicant's cause and make an order re-listing same; and*

ii) *Whether, in the circumstances of this case, this Honourable Court ought to make an order extending the time to relist this suit and re-listing the Applicant's cause.*

2.00 Argument of Issue I

Jurisdiction

2.10 The first issue formulated by the Applicants is as follows:

Whether this Honourable Court has the power and discretion to set aside its order striking out the Applicant's cause and make an order re-listing same

2.11 It is settled law that a suit struck out by a court for lack of diligent prosecution may be re-listed by the court that struck it out, if the circumstances permit such re-listing. There is no gainsaying the fact that a court, such as the National Industrial Court, has the power and discretion to set aside its order striking out a suit and to re-list same in

the manner sought in this application. See **Eastern Breweries Plc v Imen (2000) 3 NWLR (Pt 650) 662**.

2.12 Further, the National Industrial Court of Nigeria (Civil Procedure) Rules 2017 (the "Rules") provide specifically at Order 38 Rule 6(1) as follows:

> **"Where a cause is struck out under rule 1 of this Order either party may apply for the cause to be re-listed on the Cause List on such terms as the Court may deem fit."**

In that light, this application was made pursuant to the applicable Rules of this court and bearing in mind the court's inherent jurisdiction to do justice and to make orders and pronouncements in service thereof.

2.20 The second issue formulated by the Applicants is argued below and reproduced thus:

> *Whether, in the circumstances of this case, this Honourable Court ought to make an order extending the time to relist this suit and re-listing the Applicant's cause.*

2.21 Having noted this court's obvious jurisdiction to grant the orders sought in this application, it remains to determine whether the Applicant satisfies the requirements prerequisite to the grant thereof. The requirements are listed at Order 38 Rule 6 (3) and (4) of the Rules wherein it is provided thus:

> **"3.An application to re-list a cause struck out or to set aside a judgment under this rule shall be made within fourteen (14) days after the order or judgment or such other extended period as the Court may allow.**
>
> **4.The application to re-list under sub rule 1 of this Rule shall be accompanied by an affidavit and written address stating the grounds and reasons why the Court should re-list the matter. Upon service of the application on the other party, the other party shall have seven (7) days to respond as appropriate by filing a counter affidavit and Written Address."**

2.22 Furthermore, Order 57 Rule 4(1) of the National Industrial Court Rules, 2017 provides as follows:

> ***"4.— (1) Notwithstanding anything contained in these Rules, the Court may, as often as it deems fit, and either before or after the expiration of the time appointed by these Rules or by any judgment or order of the Court extend or adjourn the time for doing any act or taking any proceeding..."***

2.23 The Applicant has complied with the provisions of the Rules as provided above and this Application is brought in compliance with the laid down procedure of this Honorable Court. We urge this court to so hold.

2.23 Further, the Affidavit in Support of this Application lays out the circumstances in which the Claimant was not represented in court at the last sitting of the Court on which date the fatal Order to strike out the matter was made by this Court. In summary, the Defendants' Counsel took advantage of the fact that the Applicant's Counsel is based outside the jurisdiction, The Defendants' Counsel, acting on the knowledge that the Applicant's Counsel had been informed by the Court's Registry to attend court on the 2nd November, 2022, one of the two dates to which the matter was adjourned, yet failing to pass on this knowledge to the Court, the Defendant's Counsel misrepresented the fact that Applicant's Counsel failure to attend Court was occasioned by a lack of diligent prosecution.

2.24 On the contrary, the Applicant's Counsel was in court on the 2nd November, 2022, the second of two dates to which the matter was adjourned, and had only failed to appear on the 1st November, 2022 because of an SMS sent by the Registry of this Honourable Court which seemed to indicate that the matter would be heard solely on the 2nd November, 2022 and not on the 1st November, 2022. As Applicant's Counsel attended court from Abuja, and had to make strategic plans for air travel to and from Lagos State, the information about timing was crucial. Having communicated their position to the Defendants'

Counsel, it was unfortunate that Defendants' Counsel declined to communicate same to the Court. Up till the present date, the Defendants' Counsel has not informed the Applicant of the fact that the matter was struck out, nor of the proceedings on the 1st November, 2022.

2.25 The Applicant refers this Honourable Court to the ruling of his learned brother Honourable Justice Sanusi Kado in **suit no NICN/ABJ/52/2018 Mr Lawrence Ogah v Nigerian Turkish Nile University** reported on the online portal for judgments of this court wherein he held thus:

> **"In the modern-day adjudication, the emphasis is on doing substantial justice or what is termed as hearing of the matter on the merit and not scuffle them on the alter of technicality, as the latter approach tends to smack of high handedness. It is my view that where a suit is struck out for lack of diligent prosecution, an application for re-listing should upon fulfillment of the requirement of the rules of court be liberally considered and granted, so as to give parties a second chance to have another bite at the cherry."**

2.26 Substantial justice must not be allowed to be defeated by technicalities or scuppered by irregularities as was held in the case of **Akeredolu v Abraham & Ors (2018) LPELR- 44067** where the court pronounced obiter that "***Technicality shuts out justice. A man denied justice on any ground, much less a technical ground, grudges the administration of justice. It is therefore better to have a case heard and determined on the merits than to leave Court with a shield of 'victory' obtained on mere technicalities"***. These 'technicalities' so called are particularized by Niki Tobi JSC (of blessed memory) in **Adedeji v The State (1992) 4 NWLR (Pt 234) 248 at pg 265** as those matters which ***"the adverse party relies upon to drum down an otherwise meritorious case."***

2.27 We humbly urge this court to hold in answer to the second issue that this application is meritorious and find in favour of the Applicant.

3.14 In light of the foregoing, and having considered this Application in its fullness, it behoves this Honourable Court to do substantial justice and grant the prayers of the Applicant setting aside the judgment of this court made on the 1st November, 2022 striking out this suit and, in turn, ordering the re-listing of the cause in accordance with the Rules.

4.00 Conclusion

4.10 Noting that this Honourable Court has the power to set aside its Order striking out a cause and thereafter to make a further Order re-listing the same cause, it remains only for the Court to determine whether the Applicant fulfilled the requirements requisite for the triggering of the court's jurisdiction to grant this application. It is our submission that the Applicant has fulfilled any and all such requirements and we urge the court to act in the interests of justice in granting this application.

DATED this 14th day of November, 2022

I. Awa

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